IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD (COURT-II)

CA (CAA) No. 66/NCLT/AHM/2022

[Sections 230-232 and read with other applicable provisions of the Companies Act, 2013 read with The Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of Scheme of Arrangement in the nature of Demerger

OF

M/s Famy Life Sciences Private Limited
(Applicant Demerged Company)

With

M/s Famy Pharma Private Limited
(Applicant Resulting Company)

Order Pronounced on: 06 /03/2023

CORAM:

DR. MADAN B. GOSAVI
HON'BLE MEMBER (JUDICIAL)

AJAI DAS MEHROTRA
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

Famy Life Sciences Private Limited

a company incorporated under
the provisions of the Companies Act, 1956
having its registered office at
802, Narnarayan Complex,
Opp. Navrangpura,Post Office, Navrangpura,
Ahmedabad -380 009, Gujarat

..Applicant Demerged Company / FLSPL

Famy Pharma Private Limited

a company incorporated under
the provisions of the Companies Act, 2013
having its registered office at
802, Narnarayan Complex,
Opp. Navrangpura,Post Office, Navrangpura,
Ahmedabad -380 009, Gujarat

…Resulting Company/FPPL

For the Applicants: Mr. Navin Pahwa, Sr. Adv. a/w. Mr. Ravi Pahwa, Adv.

ORDER

1. The present joint Company Application is filed under Sections 230 to 232 with other applicable provisions of the Companies Act, 2013 (hereinafter referred to as "**the Act**") and read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016 seeking sanction to the Scheme of Arrangement between M/s. Famy Life Sciences Private Limited and M/s. Famy Pharma Private Limited and their respective shareholders and creditors ("**Scheme**").

2. The present Scheme provides for the demerger, transfer and vesting of the Demerged Undertaking (*as defined in the Scheme*) from the Applicant Dermerged Company into the Applicant Resulting Company on a going concern basis, the consequent issue of shares by

the Applicant Resulting Company. The said Scheme also provides for various other matters consequent and incidental thereto.

3. It is submitted that the registered offices of both the Applicant Companies are situated within the territorial jurisdiction of this Hon'ble Tribunal.

4. It is submitted that the Applicant Demerged Company is a private company, having CIN U40109GJ2008PTC109640 was incorporated under the provisions of the Companies Act, 1956 in the name of 'Famy Energy Private Limited' on October 27,2008. The name of the Applicant Demerged Company was changed to 'Famy Life Sciences Private Limited' w.e.f. May 07/2021. A certificate of incorporation consequent upon the change of name was issued by the Registrar of Companies, Gujarat, Ahmedabad. The authorized share capital details of the Applicant Demerged Company as of 31.10.2022 is as under:-

Particulars	**INR**
Authorised Share Capital	
15,10,000 equity shares of INR 10 each	1,51,00,000
Total	**1,51,00,000**
Issued, Subscribed and Paid-up Capital	
11,56,589 equity shares of INR 10 each	1,15,65,890
Total	**1,15,65,890**

5. The Applicant Resulting Company is also a private company having CIN U73200GJ2022PTC135317 was incorporated on 08 September,2022 under the provisions of the Companies Act, 2013 in the name of 'Famy Pharma Private Limited'. The authorized share

capital details of the Applicant Resulting Company as of 31.10.2022 is as under:-

Authorised Share Capital	
1,00,000 equity shares of INR 10 each	10,00,000
Total	**10,00,000**
Issued, Subscribed and Paid-up Capital	
300 equity shares of INR 10 each	3,000
Total	**3,000**

6. The Applicant Companies are empowered by their respective Memorandum and Articles of Association to enter into a Scheme of Arrangement. Copy of Memorandum and Articles of Association of both the Applicant Companies are placed on record. The copies of the audited and unaudited financial statements of the Applicant Demerged Company as of 31.03.2022 and 31.10.2022 respectively are annexed with the application. It is further submitted that copy of the latest audited financial statement of the Applicant Resulting Company is not available since the company was incorporated on September 8, 2022 under the Companies Act, 2013. A copy of the unaudited Financial statement of the Applicant Resulting Company as of 31.10.2022 is annexed with the Application.Thereafter, on 14.12.2022 the counsel of the Applicant Companies filed the audited financial statement of the Applicant Resulting Company as of 31.10.2022 by way of purshis.

7. The Board of Directors of both the Applicant Companies have approved the Scheme at their respective Board Meetings held on

08.11.2022. The copies of the Board Resolutions of the both applicant companies dated 08.11.2022 are annexed with the application

8. The share entitlement ratio report dated 07.11.2022 issued by the Registered Valuer recommending the share exchange ratio for the proposed scheme is annexed with the application.

9. The Applicant Companies have filed the certificates issued by the respective statutory auditors confirming that the accounting treatment proposed in the Scheme is in conformity with the applicable Accounting Standards u/s. 133 of the Act.

10. It is submitted that no investigation or proceedings under Sections 210 to 227 of the Companies Act, 2013 have been instituted or are pending in relation to the Applicant Companies.

11. It is further submitted that the Equity Shares or any other securities are not listed on stock exchanges. Pursuant to the Scheme, no consideration or equity shares will be issued to the non-resident shareholders of the Applicant Demerged Company. Therefore, in view of the aforesaid and considering the nature of business and shareholding pattern of the Applicant Companies, the Reserve Bank of India will not be regulatory authority for the purpose of the present Scheme.The Applicant Companies further submit that in the present case, notification of the Scheme to the Competition Commission of India is exempted under Schedule I of the Competition Commission of India (Procedure in regard to the Transaction of Business relating to the Combination) Regulations, 2011. Therefore, the Competition Commission of India will not be a regulatory authority for the purpose of the present Scheme.

12. With respect to the Demerged Company, it is stated that:

a) There are 13 Equity Shareholders and a certificate from a Chartered Accountant certifying the list of Equity Shareholders

is annexed with the Application. All the Equity Shareholders have given their consent by way of affidavits for the proposed Scheme. Hence, the Applicant Demerged Company seeks dispensation from holding the meeting of the Equity Shareholders.

b) The Applicant Demerged Company has no Preference Shareholders and a certificate from a Chartered Accountant certifying that there are no Preference Shareholders in the Applicant Demerged Company is submitted. Hence, the meeting of Preference Shareholders is not required to be held.

c) The Applicant Demerged Company has no Secured Creditors and a certificate from a Chartered Accountant certifying that there are no Secured Creditors in the Applicant Demerged Companyis submitted. Hence, the meeting of Secured Creditors is not required to be held.

d) The Applicant Demerged Company has 8 Unsecured Creditors and a certificate from a Chartered Accountant certifying the list of Unsecured Creditors is annexed with the Application. The Unsecured Creditors of the Applicant Demerged Company having more than 90% of the total outstanding value have given their consent by way of affidavits for the proposed Scheme. Hence, the Applicant Demerged Company seeks dispensation from holding the meeting of its Unsecured Creditors.

13. With respect to the Applicant Resulting Company, it is submitted that:

e) The Applicant Resulting Company has 12 Equity Shareholders and the certificate from the Chartered Accountant certifying the list of Equity Shareholders is annexed with the Application. All the Equity Shareholders have given their consent by way of

affidavits for the proposed Scheme. Hence, the Applicant Resulting Company seeks dispensation for holding the meeting of the Equity Shareholders.

f) The Applicant Resulting Company has no Preference Shareholders and a certificate from a Chartered Accountant certifying that there are no Preference Shareholders in the Applicant Resulting Company is submitted. Hence, the meeting of Preference Shareholders is not required to be held.

g) The Applicant Resulting Company has no Secured Creditors and a certificate from a Chartered Accountant certifying that there are no Secured Creditors in the Applicant Resulting Company is submitted. Hence, the meeting of Secured Creditors is not required to be held.

h) The Applicant Company has no Unsecured creditors and a certificate from a Chartered Accountant certifying that there are no Unsecured Creditors in the Applicant Resulting Company is submitted. Hence, the meeting of Unsecured creditors is not required to be held.

14. Taking into consideration the submissions and the documents filed therewith, we issue the following directions with respect to dispensing the meeting of the Equity Shareholders, Preference Shareholders, Secured and Unsecured Creditors, as well as issue of notices:-

i. For the Applicant Demerged Company :

a. With respect to Equity Shareholders:

The convening of the meeting of Equity Shareholders of the Applicant Demerged Company is hereby dispensed with in view of 100% consent by way of affidavits received from its Equity Shareholders;

b. With respect to Preference Shareholders:

There are no Preference Shareholders in the Applicant Demerged Company and hence, convening of the meeting of Preference Shareholders is not required.

c. With respect to Secured Creditors:

There are no Secured Creditors in the Applicant Demerged Company and hence, convening of the meeting of Secured Creditors is not required.

d. With respect to Unsecured Creditors:

The convening of the meeting of Unsecured Creditors of the Applicant Demerged Company is hereby dispensed in view of consent by way of affidavits that have been received from the Unsecured Creditors having more than 90% of the total outstanding value.

ii. For the Applicant Resulting Company:

a. **With respect to Equity Shareholders:**

The convening of the meeting of Equity Shareholders of the Applicant Resulting Company is hereby dispensed in view of 100% consent by way of affidavits received from the Equity Shareholders.

b. With respect to Preference Shareholders:

There are no Preference Shareholders in the Applicant Resulting Company and hence, convening of the meeting of Preference Shareholders is obviated.

c. With respect to Secured Creditors:

There are no Secured Creditors in the Applicant Resulting Company and hence, the convening of the meeting of Secured Creditors is obviated.

d. With respect to Unsecured Creditors:

There are no Unsecured Creditors in the Applicant Resulting Company and hence, the convening of the meeting of Unsecured Creditors is obviated.

15. The Applicant Companies shall serve the notice of the Company Application on the following authorities viz. (i) the Central Government through Regional Director, North Western Region; (ii) Registrar of Companies, Gujarat; (iii) Income Tax Department along with full details of the Assessing Officer and PAN Numbers of both the Applicant Companies, (iv) Reserve Bank of India and to such other Sectoral Regulatory authorities who may govern the working of the Applicant Companies involved in the Scheme, and they are to submit their response, if any, within 30 days of receipt of notice.

16. The Company Application is allowed and disposed of in terms of the above directions.

S/d- S/d-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

RAHUL/LRA